

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SEPIDEH BANAVA,

Petitioner

VS.

FARHAD JAFARI NASAB KERMANI,

Respondent

) Case Number: FDI-25-801573

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: BIFURCATION ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Sepideh Banava (Wife) and Respondent Farhad Kermani (Husband) married on 6/21/1991. Wife contends the parties separated on 6/10/2025, for a marriage of 33 years and 11 months. Husband has not filed a Response to the Petition and therefore Husband's position regarding the date of separation is unknown. The parties have no minor children. Wife is represented by attorney Hossein Berenji.
- 2) At the prior 2/3/2026 hearing, the Court granted Claimant Masoud Jafari (Husband's brother)'s unopposed request to be joined as a party to the proceeding. Claimant Jafari asserts that Husband and Wife hold a ½ tenant in common interest in 2420 Moraga St. San Francisco, CA 94122 and that Claimant holds the remaining ½ tenant in common interest in the property. Claimant is represented by attorney Elijah Underwood.
- 3) Now on for hearing is Claimant Jafari's Request for Order filed 3/24/2026. Claimant Jafari states, "On or about May 11, 2026, Petitioner and Respondent acquired the Property via Grant Deed, as husband and wife, and as tenants-in-common with Claimant. To date, Claimant has been unable

1 to reach an agreement with Petitioner or Respondent to sell the Property. As such, on December
2 8, 2026, Claimant served a Notice of Ouster on Petitioner, after Petitioner denied Claimant's
3 request for concurrent possession. Now, Claimant seeks an order to bifurcate the Property related
4 proceedings to pursue a sale, without delay, or incurring the unnecessary expense of duplicative
5 litigation... Absent an order for bifurcation, Claimant will be forced to file a separate suit for
6 partition, as the Parties have been unable to reach an agreement to sell the Property. ” The Court
7 notes that the May 2026 date cited by Claimant Jafari regarding the acquisition of the Moraga St.
8 property is likely a typographical error as Petitioner states in her declaration filed 7/8/2026 that
9 the property was acquired in May 2016.

- 10 4) Per the Proofs of Service filed 3/27/2026, Claimant Jafari’s Request for Order was mailed to
11 Wife’s attorney as well as to an address for Husband in Columbus, Ohio on 3/27/2026.
- 12 5) On 5/6/2026, Wife filed a Responsive Declaration stating, “There is no basis for Claimant to
13 request that the property located at 2420 Moraga St., San Francisco, CA be sold prior to trial.
14 California law strongly disfavors dividing property and ordering its sale or other disposition prior
15 to trial absent a finding that the property is in imminent danger of loss: See generally Family
16 Code 2108 (Court authorized to order pretrial sale of property only to avoid risk of imminent
17 loss); Lee v. Superior Court (Lee) (1976) 63 Cal. App. 3d 705, 710, 711 (Trial Court erred in
18 ordering pretrial sale of property and disbursement of proceeds when there was no risk of loss and
19 inadequate security.) Claimant has identified absolutely no facts warranting the pretrial sale of
20 this property, such as the property being at risk of foreclosure. That is because the property is not
21 at risk of foreclosure and is not distressed; the Claimant merely wanting to sell now is not a basis
22 for the pretrial sale of the Moraga St. Residence.”
- 23 6) On 7/8/2026, Wife filed a second Responsive Declaration reiterating the request to deny
24 Claimant’s request to bifurcate the issue of the Moraga St. residence. Wife states Husband and
25 Claimant (his brother) are acting in concert. Wife states, “Neither Claimant nor Respondent has
26 done their Preliminary Declaration of Disclosure in this matter. It is black-letter law under Family
27 Code 2108 that ‘in no event shall the court grant the application unless, as provided in this
28 chapter, the appropriate declaration of disclosure has been served by the moving party’...
29 Claimant, for his part, has asserted that he has the right to participate in this case on Respondent’s

1 behalf claiming authority under a Power of Attorney. Respondent is refusing to engage in this
2 case and is hiding behind his brother, relying on this Power of Attorney. Respondent is
3 attempting to use his brother's joinder and this Power of Attorney to bypass the requirements that
4 he do his own Preliminary Declaration of Disclosure so that he can start disposing of marital
5 assets and liquidating one of the single most valuable items in the marital estate without
6 disclosing what he contends are the parties' assets and holdings. The Court should not permit
7 itself to be used in such a fashion... Claimant has never lived on the Moraga St. property since it
8 was purchased, and had never previously expressed an interest in living there. He owns his own
9 home in Brea, CA, more than 420 miles away. This sudden desire to move in with Petitioner,
10 coinciding with Petitioner filing a marital dissolution action against Claimant's brother, is almost
11 certainly a pressure tactic, which Petitioner resisted; in turn, Claimant now claims that he was
12 'ousted' from the property. There was no such ouster, and the Court should not ratify this sort of
13 pressure tactic and power play with an order for sale... The Property is not at risk of foreclosure.
14 I have continued to make the required mortgage, tax, and insurance payments and am not in
15 default or behind on those payments. There is no financial distress warranting a pre-trial sale.
16 Respondent has not complied with the requirement of doing his disclosures and so the Court
17 should not even consider a pre-trial sale of assets, nor has Claimant. Claimant's request to
18 bifurcate the Property from the rest of the case and order its sale should be denied."

19 7) Per the Proofs of Service filed 5/6/2026, Wife's Responsive Declaration was emailed to Claimant
20 Jafari's attorney as well as emailed to two email addresses for Husband on 5/6/2026.

21 8) Per the Proofs of Service filed 7/8/2026, Wife's Responsive Declaration was emailed to Claimant
22 Jafari's attorney as well as emailed to two email addresses for Husband, and mailed to an address
23 for Husband in Columbus, OH, on 7/8/2026.

24 9) Husband did not file a Responsive Declaration, nor has Husband filed any pleadings in this matter
25 to date.

26 10) Claimant Jafari did not file a Reply Declaration.

27 11) The Court notes that although Wife states Claimant Jafari has power of attorney over Husband,
28 the Court has not seen any documentary evidence to support that assertion.

1 **B. Findings and Order**

2 1) California Rules of Court, rule 5.390(b) states: “The court may separately try one or more issues
3 before trial of the other issues if resolution of the bifurcated issue is likely to simplify the
4 determination of the other issues.”

5 2) The Court does not find that Claimant Jafari has demonstrated good cause under California Rules
6 of Court, rule 5.390 to bifurcate the Moraga St. property for separate trial. Claimant Jafari’s
7 request is denied without prejudice.

8 3) Claimant Jafari’s attorney shall prepare the Findings and Order After Hearing.

9 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).